



POLICE DEPARTMENT

June 13, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202400350 (Incident Date: December 27, 2023) regarding Police Officer Joksan Barragan, Tax No. 976585 (PODS Case No. C-034170)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officer Joksan Barragan and has determined that the sole allegation does not warrant disciplinary action.

After reviewing the facts and circumstances of this matter and the relevant video footage, it is clear the complainant acted in a threatening manner and was noncompliant toward the officers. Police Officer Barragan stopped the complainant for riding his moped on the sidewalk and not wearing a helmet. The complainant refused multiple orders to turn off his moped and to get off it. Police Officer Barragan attempted to place him in handcuffs, but he pulled away. Eventually, Police Officer Barragan pointed his Conducted Electrical Weapon ("CEW") at the complainant to deescalate and gain compliance. It has been determined that the actions of Police Officer Barragan were proper and complied with Department guidelines.

Therefore, based on the foregoing, Police Officer Barragan will not receive any disciplinary action for the allegation of threatening to use force.

Sincerely,

Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

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